

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, SEPTEMBER 1, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, September 1, 2026**. The tentative ruling will be the court’s final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, August 31, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at **8:30 a.m. in Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court’s website: www.placer.courts.ca.gov.

1. M-CV-0082549 Johnson, Kip v. Boyd, Michael

Motion for Attorney’s Fees and additional sanctions against Defendants pursuant to Code of Civil Procedure section 128.5

Plaintiff moves the court for attorney’s fees and sanctions pursuant to Code of Civil Procedure § 128.5.

Defendant Anne Laure Boyd filed an untimely opposition on July 24, 2026. Nevertheless, in its discretion, the court considered her filing.

Plaintiff moves the court to grant sanctions against defendants pursuant to Code of Civil Procedure § 128.5, which states, “[a] motion for sanctions under this section shall ... describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay.” Cal. Civ. Proc. Code § 128.5 (f)(1)(A). Plaintiff states defendants acted in bad faith by appealing this court’s order of February 17, 2026.

The court notes that in her opposition to the previously filed motion to enforce settlement agreement, defendant stated in her declaration the settlement was executed under duress, coercion, and extreme psychological pressure. Although the court rejected her argument

based on a lack of evidence, the court does not find that defendants' appeal of the court's order was done in bad faith.

As plaintiff has not demonstrated defendants' have acted in bad faith, the request for sanctions against defendants pursuant to Code of Civil Procedure §§ 128.5 is denied.

2. M-CV-0092493 Wells Fargo Bank NA v. Santiago, Jazz

Motion for Judgment on the Pleadings

The court may grant a motion for judgment on the pleadings in favor of a plaintiff where the complaint states facts sufficient to constitute a cause of action, and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc., § 438, subd. (c)(1)(A).) The grounds for the motion must appear on the face of the challenged pleading, or be based on facts which the court may judicially notice. (*Id.* at subd. (d).)

Here, plaintiff has not provided a declaration of costs in support of the costs it is requesting. Therefore, plaintiff does not demonstrate entitlement to the requested costs of \$430.

Additionally, the prevailing party of a granted motion must provide all other parties or their attorneys with notice of the court's decision or order. (Code. Civ. Proc., § 1019.5, subd. (a).) Here, there is no evidence in the court's file that plaintiff has served defendant with notice of entry of the court's order deeming matters admitted.

The court on its own motion continues this matter to **September 22, 2026 at 8:30 a.m. in Department 32**. Plaintiff shall file and serve a notice of entry of the court's order deeming matters admitted, a declaration of costs in support of the costs plaintiff is requesting, and a notice of continued hearing by September 11, 2026.

3. M-CV-0095373 Mariner Finance v. Moser, Ronald T Sr.

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Deem Matters Admitted

Plaintiff's unopposed motion to deem admitted plaintiff's request for admissions, set one, is granted. (Code Civ. Proc., § 2033.280.) Defendant Ronald T. Moser, Sr. is deemed to have admitted the matters set forth in plaintiff's requests for admissions, set one.

4. **M-CV-0096242** **Sac Area Rentals v. Lively, Tanika**

Motion to Set Aside Default and Default Judgment

Defendant moves to set aside default and default judgment pursuant to Code of Civil Procedure section 473(b).

The court may “upon any terms as may be just” set aside default due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside default must be made “within a reasonable time, in no case exceeding six months” from the entry of default. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence and must bring the motion within 180 days. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, defendant’s motion is timely brought within approximately six weeks of the entry of default and default judgment. Moreover, defendant declares she first learned of entry of default and default judgment on August 19, 2026 and she sought relief merely two days later by filing the instant motion. As to grounds for relief, defendant declares she was never personally served nor did she receive service by mail and she believed she did not have to file an answer because there was no proof of service in the court’s file. Defendant has shown sufficient “mistake, inadvertence, surprise, or excusable neglect” within the meaning of Code of Civil Procedure section 473(b).

The motion is granted. Default and default judgment entered against defendant on July 7, 2026 are hereby set aside. Defendant shall file and serve her answer to the complaint by September 8, 2026.

5. **M-CV-0097392** **Ford Motor Credit Co. v. Hanson, Lawrence J**

Defendants’ Motion to Compel Arbitration and Motion to Stay

Defendants Lawrence J. Hanson and Cynthia Yolcan move to compel arbitration and to dismiss proceedings. Plaintiff opposes this motion.

Plaintiff’s complaint filed April 28, 2026, alleges breach of contract and common counts based on the failure to make payments on a vehicle purchase contract. The subject contract, which plaintiff attaches to the complaint, contains an arbitration provision.

Section 2 of the Federal Arbitration Act (“FAA”) makes agreements to arbitrate “valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) This provision reflects both a “liberal federal policy favoring arbitration” and the “fundamental principle that arbitration is a matter of contract.” (*AT&T Mobility LLC v. Concepcion*, (2011) 563 U.S. 333, 339.) California law mandates that the court must grant a petition to compel arbitration “unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement.” (*Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.) “Any doubts concerning the scope

of arbitrable issues should be resolved in favor of arbitration, whether the problem at hand is the construction of the contract language itself or an allegation of waiver, delay, or a like defense to arbitrability.” (*Three Valleys Mun. Water Dist. v. E. F. Hutton & Co.*, (9th Cir. 1991) 925 F.2d 1136, 1139.)

A threshold question for any motion to compel arbitration is whether an agreement to arbitrate exists between the parties. (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396.) Defendant carries this initial burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) A party opposing a motion to compel arbitration then “bears the burden of proving by a preponderance of the evidence any fact necessary to its defense” including evidence challenging the acceptance of the agreement. (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842; *Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.)

Here, defendants’ motion fails to attach a copy of the arbitration agreement. Nevertheless, the court on its own motion takes judicial notice of Exhibit A to the complaint, the agreement that forms the basis for plaintiff’s claims, and which contains an arbitration provision at page five. Thus the court determines the existence of an arbitration agreement has been demonstrated.

Plaintiff alternatively argues defendants waived the right to arbitration by filing their answer and cross-complaint. “The party asserting waiver must establish, by clear and convincing evidence, that the party knew of its right to compel arbitration and intentionally relinquished that right through conduct inconsistent with an intent to arbitrate.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) Here plaintiff does not establish intentional waiver by clear and convincing evidence. Defendants’ answer, cross-complaint and motion to compel arbitration were filed simultaneously within two months of the complaint being filed. Plaintiff otherwise raises no substantive defenses to enforceability of the arbitration provision.

The motion to compel arbitration is granted. Plaintiff shall be responsible for paying filing and other fees pursuant to the terms of the agreement. This action shall be stayed pending the outcome of the arbitration.

An order to show cause re: arbitration is set April 27, 2027, at 9:00 a.m. in Department 32.

6. **S-CV-0051246 Willms, John T v. Juchau, Lunele**

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to Strike

Cross-complainants move to strike cross-defendants' answer to the first amended cross-complaint ("FAXC") or, in the alternative, to strike cross-defendants' second, third, fourth, fifth, and sixth affirmative defenses therein. (Code Civ. Proc., § 436, subd. (a).) Cross-defendants oppose the motion.

Preliminary Matters

A party moving to strike a pleading must meet and confer in good faith prior to filing a motion to strike. (Code Civ. Proc., § 435.5; Local Rule 20.1.) Cross-complainants submit no evidence of any effort to comply with this requirement. While generally the trial court would continue hearing on the motion for cross-complainants to attempt to resolve this issue out of court, in light of the impending trial date, the court elects to reach the merits of the motion.

Cross-complainants' request for judicial notice is granted.

Cross-complainants' objections are overruled in their entirety.

Ruling on the Motion

The motion is denied. Cross-complainants filed their cross-complaint on September 17, 2024, which cross-defendants answered on December 4, 2024. Cross-complainants filed their FAXC on March 13, 2026. While no answer to the FAXC was timely filed, cross-complainants did not seek entry of default or demand cross-defendants answer. Rather, cross-complainants elected to file a motion for summary judgment and then cross-defendants filed their answer to the FAXC on July 31, 2026. Now cross-complainants argue cross-defendants waited until the last possible minute to answer and did so in bad faith. Cross-complainants argue that they will be prejudiced in combatting the newly raised defenses because the discovery cutoff and the deadline for expert disclosure have already passed. Cross-complainants go so far as to argue, "Allowing the Willms to proceed with their answer to the FAXC makes a mockery of the judicial process." (XCs' motion, p. 6:18–19.) What cross-complainants do not provide, however, is any citation to legal authority that would support a finding that the answer to the FAXC is "irrelevant, false, or improper." The motion is accordingly denied.

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Cross-complainants move for summary judgment or, in the alternative, summary adjudication of their claims for declaratory relief and injunctive relief in their first amended cross-complaint (“FAXC”). Cross-defendants oppose the motion.

Evidentiary Issues

Cross-complainants’ request for judicial notice submitted with their moving papers is granted.

Cross-defendants’ request for judicial notice is granted as to Exhibit A and denied as to Exhibit B.

Cross-defendants’ objections to the Juchau declaration and Exhibit 1 thereto are overruled.

Cross-defendants’ request for judicial notice submitted with their reply is granted.

Cross-complainant’s objections to portions of the Willms declaration are overruled, their objections to portions of the Thomas declaration are overruled, their objections to cross-defendants’ request for judicial notice of Exhibit A is overruled, and their objection to cross-defendants’ request for judicial notice of Exhibit B is denied as moot in light of the court’s above ruling denying cross-defendants’ request for judicial notice as to Exhibit B.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of material fact. (Code Civ. Proc., § 437c, subd. (c).) The party seeking summary judgment bears the burden of showing there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) The moving party has the burden of showing, by affidavit, facts establishing every element necessary to sustain a judgment in favor of the party. (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Once a cross-complainant proves its prima facie case, the burden of proof shifts to the cross-defendant to prove a triable issue of one or more material facts exists. (Code Civ. Proc., § 437c, subd. (p)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a motion for summary judgment, the court must view the supporting evidence, and inferences reasonably drawn from such evidence, in the light most favorable to the opposing party. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court reviews the motion with these principles in mind.

Cross-complainants present evidence that their home is located at 1255 Robbers Ravine Road in Colfax, California, and cross-defendants live immediately to the east of the cross-complainants at 26885 Rockrose Lane in Colfax, California. (SSUMF No. 1.)

Cross-complainants also own the parcel immediately to the south of and adjacent to cross-complainants' Robbers Ravine parcel and cross-defendants' Rockrose parcel. (SSUMF No. 2.) There is a pond that forms from rain and runoff in a ravine on cross-complainants' property that generally fills during the wet season and empties during the dry season. (SSUMF No. 5.) During most of the year, the pond is exclusively on the cross-complainants' property, but when the pond is full or near full capacity, the water extends eastward away from the dam on the western side and covers a portion of cross-defendants' property. (SSUMF Nos. 5, 6.) Over the years, the parties have disagreed about who is entitled to use the pond as cross-defendants contend when the pond touches their real property, they are entitled to use the entirety of the pond while the cross-complainants disagree. (SSUMF Nos. 4, 7–9.)

Cross-complainants contend entitlement to judgment on both causes of action contending that the undisputed facts show the respective parties each own a portion of the real property that is underneath the pond and persuasive authority supports that cross-complainants may exclude the cross-defendants from access to and use of the portion of the pond that is above cross-defendants' real property. Cross-complainants acknowledge there is no California authority directly on point but ask the court to adopt what other jurisdictions have referred to as the majority view that the owner of real property underneath a body of water maintains the exclusive right of use of the water on that real property and may exclude others. (See, e.g., *Baker v. Normanoch Assn.* (1957) 25 N.J. 407, 418.)

A claim for declaratory relief requires an actual controversy relating to the legal rights and duties of the respective parties to a written instrument. (Code Civ. Proc., § 1060.) Cross-complainants do not refer to or present as evidence any written instrument. Cross-complainants' only evidence showing an actual controversy is a reference to "several disputes" "[o]ver the years" and referring to the cross-defendants' complaint and cross-complainants' FAXC. (SSUMF Nos. 3, 4, 9.) While it appears cross-complainants did not submit any evidence as to two elements of their first cause of action, the court also observes that cross-defendants concede there is "an actual controversy [that] exists between the parties concerning their respective rights to use the pond." (RSSUMF No. 7.) Nonetheless, as cross-defendants did not submit any evidence of a "written instrument," they have not shown entitlement to judgment.

As to cross-complainants' claim for injunctive relief, cross-complainants rely on the exact same evidence they presented for their declaratory relief claim. Cross-complainants submit no evidence to support injunctive relief as the proper outcome over other legal remedies available including damages. It appears cross-complainants have not met their initial burden as to the injunctive relief claim.

Even if cross-complainants' evidence is sufficient for the court to find they met their initial burden, cross-defendants nonetheless meet their burden so as to defeat the motion. Cross-defendants submit evidence in the form of a responsive separate statement ("RSSUMF") and a separate statement of additional material facts ("SSAMF") that from June 2012 to June 2022, they used the entire surface of the pond openly, regularly, and

without restriction. (RSSUMF No. 4; SSAMF 16.) Cross-defendants used the pond because they understood they had a right to do so; they never asked permission to use the pond nor did cross-complainants ever grant permission. (SSAMF No. 17.) No fence, rope, marker, or other barrier divided the pond until a rope and buoy line first appeared in 2022 and no dispute concerning the property line or this use arose until after cross-complainants purchased their second parcel to the south and cross-defendants listed their property for sale. (RSSUMF No. 4; SSAMF No. 18.) The pond forms from a stream that rises in the northeast of cross-complainants' property and flows through their property to the ravine where it collects behind the dam. (RSSUMF No. 5; SSAMF No. 10.) The property line is disputed because the cross-defendants retained licensed surveyor Clayton Guiraud who surveyed and staked the boundary in August 2020 and the survey ribbon was removed within approximately one week and cross-complainant Corey Juchau had indicated the surveyed line was not the property line. (RSSUMF No. 6; SSAMF No. 19.) The rope and buoy line does not follow the true property line. (RSSUMF No. 6, SSAMF No. 19.)

Based on their evidence, cross-defendants sufficiently raise triable issues of material fact as to the existence of a prescriptive easement and as to unclean hands. The evidence about the accumulation of the pond from a stream also supports denying this motion. As no party submits evidence as to whether the pond is navigable, it is unclear the applicability of Civil Code sections 670 and 830. Moreover, Civil Code section 830 provides that when a landowner owns water to the edge of "any other water" other than tide water or a navigable lake or stream, then "the owner takes to the middle of the lake or stream." As neither party submits any evidence as to what type of water the pond is and distance and exact measures are not included on cross-complainants' Exhibit 1, this is another reason the motion should not be granted.

Based on the foregoing, the motion for summary judgment is denied and the motion for summary adjudication is likewise denied.

7. S-CV-0053363 Dept. of Transp. v. Roth, Thomas A

Motion for Order for Possession of Parcels 38575-1, 2, 3, and 4

Plaintiff seeks a court order to acquire parcels 38575-1, 2, 3, and 4, by eminent domain and to take possession thereof.

Defendants do not oppose possession 30 days after service of the order after the September 1, 2026, motion hearing or October 6, 2026, whichever is later, which is the statutory date it can be granted by the court per Code of Civil Procedure Section 1255.450(b). Defendants request that possession be granted on the condition that plaintiff fence off its takes and post no trespassing signs. Plaintiff accepts defendants' request and condition.

The motion for a court order to acquire parcels 38575-1, 2, 3, and 4, by eminent domain and to take possession thereof is granted. The court finds notice was properly given to

record owner(s) pursuant to Section 1255.410, subdivision (b). Plaintiff has deposited in the State Treasury an amount that satisfies the requirements of Code of Civil Procedure sections 1255.010 – 1255.080. The court incorporates by reference the findings outlined in the proposed order for possession of parcels 38575-1, 2, 3, and 4, lodged with the court on April 10, 2026.

8. S-CV-0054972 Dunk N' Run Donuts v. Toyota Motor Sales

The motion for attorneys' fees is continued to be heard on **September 8, 2026 at 8:30 a.m. in Department 32**. The court apologizes to the parties for any inconvenience.

9. S-CV-0055963 Routon, Mariha R v. Lyon dba Taco Bell

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Approval of PAGA Settlement

Plaintiff moves for approval of the parties' PAGA settlement. The court observes several issues that plaintiff should address prior to the court reaching the substance of the motion.

First, the memorandum of points and authorities refer to a declaration of Lisa Mullins (p. 14:25); however, no declaration of Lisa Mullins was filed together with plaintiff's moving papers. Without this information, there is insufficient information from the settlement administrator for the court to approve the settlement. The court observes, however, on March 6, 2026 plaintiff filed a declaration of Lisa Mullins. Plaintiff should either file the declaration plaintiff referred to in its moving papers or specify that the March 6, 2026 is the declaration plaintiff is referring to.

Second, the amount of litigation costs included in plaintiff's memorandum of points and authorities (\$5,674.59) differs from the amount counsel declares in his declaration (\$5,747.96). Plaintiff does not acknowledge the discrepancy or provide any explanation. Plaintiff should clarify the correct amount of litigations costs being sought and if the amount being sought changes the total net PAGA penalties listed in the memorandum of points and authorities on page 4, line 25, plaintiff should provide an updated calculation.

Third, plaintiff's counsel declares plaintiff submitted its PAGA notice letter to the LWDA on May 29, 2025 but does not provide a copy of that PAGA notice letter either as part of this motion or as an exhibit to the complaint. Plaintiff shall submit a copy of the PAGA notice letter.

Finally, plaintiff's counsel declares he was contemporaneously filing his declaration and settlement to the LWDA's online portal. However, no evidence is provided that plaintiff's counsel actually did so. Plaintiff shall submit updated proof showing that the settlement has been submitted to the LWDA so the court can confirm plaintiff's compliance with Labor Code section 2699(s)(2).

To afford plaintiff the opportunity to address the above-stated issues, the court continues this motion to **September 22, 2026 at 8:30 a.m. in Department 32**. By September 9, 2026, plaintiff shall file and serve a supplemental declaration of counsel with exhibits as appropriate.

10. S-CV-0056043 Hill Top Cntr. v. Kelly Architectural & Planning

Demurrer of Cross-Defendant Hoss Bozorgzad to Cross-Complaint

Cross-defendant Hossein “Hoss” Bozorgzad (“Bozorgzad”) demurs to the cross-complaint in its entirety on the grounds it fails to state any cause of action against him as an individual, and is uncertain, ambiguous and unintelligible. (Code Civ. Proc. § 430.10 (e), (f).) Defendant / cross-complainant Kelly Architecture & Planning, Inc., opposes the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Bozorgzad contends the cross-complaint contains overly conclusory allegations related to his purported alter ego liability. The court has reviewed the cross-complaint in its entirety and finds it sufficiently alleges the requisite elements supporting alter ego liability at the pleading stage. (*See Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236 (abrogated on other grounds).) The demurrer is overruled on this ground.

Bozorgzad separately argues cross-complainant’s third cause of action for fraud by concealment fails to state sufficient facts to constitute a valid cause of action and is uncertain. “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” (*Graham v. Bank of America, N.A.* (2016) 226 Cal.App.4th 594, 606.) The allegations of a fraud claim based on concealment must be stated with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.)

The cross-complaint fails to allege all elements of the fraud claim with necessary

specificity. The demurrer is sustained as to the third cause of action with leave to amend. Any amended cross-complaint shall be filed and served on or before **September 11, 2026**.

11. S-CV-0056073 Berg, Jill Elaine v. Berg, Brendon

Counsel is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion To Be Relieved as Counsel

Counsel Gordon G. Bones's motion to be relieved as counsel for defendant The EMC Shop, LLC is granted, effective upon the filing of a proof of service of the signed order on the defendant. (Code Civ. Proc., § 284, subd. (2); Cal. Rules of Court, rule 3.1362.)

As an entity defendant may not represent itself in court, defendant The EMC Shop, LLC is advised it must obtain representation forthwith and that failure to do so may result in consequences including but not limited to the inability to defend against motions, the inability to prosecute the case, and ultimately possible dismissal of the action. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141; *Van Gundy v. Camelot Resorts, Inc.* (1983) 152 Cal.App.3d Supp. 29.)

12. S-CV-0056153 Reddy, Pardha v. Dismukes, Bret

Cross-Defendants' Demurrer to Dismuke Construction and Bret Dismukes' Amended Cross-Complaint is continued to **September 15, 2026 at 8:30 a.m. in Department 32**.

13. S-CV-0057022 Wagenhoffer, Karl v. Sonitrol of Sacramento

The demurrer to the complaint is dropped from calendar as no moving papers were filed with the court and in light of the full dismissal filed on July 7, 2026.

14. S-CV-0057073 Foulk, Steven R v. LoanDepot.com

The motion for preliminary injunction is continued to **September 15, 2026 at 8:30 a.m. in Department 32**. No further briefing is permitted.
